

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: StaceyAnn McFarlane-Ross	Team: Squad #15	CCRB Case #: 201706372	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/04/2017 2:20 PM	Location of Incident: Mobil gas station at 868 Arthur Kill Road	Precinct: 122	18 Mo. SOL 2/4/2019	EO SOL 2/4/2019	
Date/Time CV Reported Fri, 08/04/2017 2:59 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/04/2017 2:59 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Tamar Uster	10517	935892	122 PCT
2. DTS Louise Sanfilippo	4715	929117	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A.DTS Louise Sanfilippo	Abuse: Detective Louise Sanfilippo threatened to arrest § 87(2)(b)	
B.DTS Louise Sanfilippo	Abuse: Detective Louise Sanfilippo threatened to arrest § 87(2)(b)	
C.POF Tamar Uster	Abuse: Police Officer Tamar Uster threatened to arrest § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 4, 2017, at approximately 3:00 p.m., § 87(2)(b) filed this complaint on behalf of himself and his wife, § 87(2)(b) via telephone with the Civilian Complaint Review Board.

On August 4, 2017, at approximately 2:20 p.m., § 87(2)(b) and § 87(2)(b) were at the Mobil Gas Station located at 868 Arthur Kill Road in Staten Island when § 87(2)(b) and an unidentified individual started a verbal argument over a gas pump. During the argument, § 87(2)(b) contacted the police and reported that he was being threatened. Approximately five minutes later, PO Tamar Uster and PO Louise Sanfillipo from the 122nd Precinct responded to the location. § 87(2)(b) explained that the individual approached PO Uster and PO Sanfillipo and informed them that he threatened to hit him. At that point, § 87(2)(b) approached PO Uster and PO Sanfillipo and identified himself as the second party involved. PO Sanfillipo asked § 87(2)(b) “Did anyone get hurt? Did anyone get hit?” After that, PO Sanfillipo screamed at § 87(2)(b) “Do you want to be arrested? Do you want to go to jail?” (**Allegation A: Abuse of Authority**, § 87(2)(g)). By that time, § 87(2)(b) exited the vehicle and approached PO Sanfillipo who allegedly stated to her, “You’re going to jail too” (**Allegation B: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) attempted to speak with PO Uster who asked him three times, “Do you want to get arrested?” (**Allegation C: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) the individual and the officers left without any one being arrested or anyone being issued any summonses.

Since the filing of this complaint, PO Sanfillipo was promoted to the rank of a detective. Additionally, video footage for this incident was not recovered.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Louise Sanfillipo threatened to arrest

§ 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Tamar Uster threatened to arrest

§ 87(2)(b)

§ 87(2)(b) (BR 01, 02, 04) testified once PO Uster and PO Sanfillipo arrived to the gas station, he was not allowed to give his account of what happened. He explained the unidentified individual he was arguing with allegedly informed PO Sanfillipo and PO Uster that he was threatened and was afraid § 87(2)(b) would follow him. As § 87(2)(b) attempted to speak with PO Sanfillipo and PO Uster, PO Sanfillipo allegedly responded, “Did anyone get hurt? Did anyone get hit?” PO Sanfillipo asked § 87(2)(b) “Do you want to be arrested? Do you want to go to jail?” and told him to make up his mind. § 87(2)(b) explained he attempted to speak to PO Uster, she allegedly responded two to three times, “Do you want to get arrested?”

§ 87(2)(b) (BR 02, 03), testified after PO Sanfillipo and PO Uster arrived to the location, the unidentified individual approached them and spoke with them. Approximately five minutes later, PO Sanfillipo stood approximately 15 feet away from her and § 87(2)(b) looked in their direction and stated, “Nobody got hurt? Nobody hit anybody? If that’s the case, you need to get into your cars and go home. Or otherwise, you’re both going to go to jail.”

PO Sanfillipo (BR 05) testified that she received a call regarding a threat in progress. Upon arriving to the gas station, she observed § 87(2)(b) and § 87(2)(b) who were inside of their vehicle and an unidentified individual exiting the gas station mart. § 87(2)(b) and the individual began arguing in front of PO Sanfillipo about a gas pump. She asked both § 87(2)(b) and the individual if anyone was hurt or needed an ambulance. Neither men were hurt nor in need of medical attention and so it was determined that there was no threat. PO Sanfillipo explained both § 87(2)(b) and the individual wanted the other to be arrested, but because both men were behaving aggressively, she explained to them that she cannot take cross-complainant reports. PO Sanfillipo explained generally if there is no primary aggressor, everyone will be arrested or no one will be arrested. PO Sanfillipo explained she informed § 87(2)(b) and the individual of what generally happens. At the same time, PO Uster informed § 87(2)(b) and the individual that they should settle the incident at that moment and go home or everyone will be taken to the precinct. PO Sanfillipo explained that § 87(2)(b) and the individual could have been arrested for disorderly conduct. PO Sanfillipo testified she did not interact with § 87(2)(b).

PO Uster (BR 06) testified since § 87(2)(b) and the individual continued to argue with each other without any attempt to stop, she stated to § 87(2)(b) and the individual, "If you like, we can take this to the precinct." PO Uster explained she made this comment because she felt it would have been safer to handle this situation inside of the precinct as a form of de-escalation. However, she noted based on her investigation, neither § 87(2)(b) nor the individual were a threat to one another. PO Uster explained she made a general statement about going to the precinct, but did not threaten to arrest § 87(2)(b). She did not hear PO Sanfillipo threaten to arrest § 87(2)(b). She further explained based on the argument between § 87(2)(b) and the individual, they both could have been arrested for disorderly conduct for causing an annoyance in public as there were children and other individuals now coming to the gas station and were observing the argument.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Louise Sanfillipo threatened to arrest

§ 87(2)(b)

§ 87(2)(b) testified after PO Sanfillipo told everyone to get inside of their cars and leave the gas station, she wanted to speak to PO Sanfillipo about the incident. PO Sanfillipo stated to her, "I thought you were getting inside of your car and leaving." § 87(2)(b) explained she was unable to speak to PO Sanfillipo before she was told, "You're going to jail too." § 87(2)(b) explained PO Sanfillipo threatened to her and § 87(2)(b) to jail approximately three times.

§ 87(2)(b) testified on August 15, 2017, § 87(2)(b) attempted to speak with PO Sanfillipo but PO Sanfillipo did not allow her to speak. However, when he turned his attention to PO Uster to speak with her, § 87(2)(b) stood by the vehicle. On this day, § 87(2)(b) did not

allege PO Sanfillipo threatened to arrest § 87(2)(b) On January 23, 2018, in a follow up call to § 87(2)(b) he clarified that, PO Sanfillipo told § 87(2)(b) “Get out of here. You can go now or you’ll be arrested” after she attempted to speak with her.

PO Sanfillipo initially testified she did not have any interactions with § 87(2)(b) as she remained inside of the car. However, she later testified that § 87(2)(b) exited the car and stated to her, “He retired from the job.” PO Sanfillipo inquired further from § 87(2)(b) which job she was referencing and came to learn § 87(2)(b) was speaking about the United Parcel Service (UPS). PO Sanfillipo did not threaten to arrest § 87(2)(b)

PO Uster testified § 87(2)(b) stayed inside of the car until the end of the incident when she came out and began yelling at § 87(2)(b) However, she did not remember what § 87(2)(b) said to § 87(2)(b) PO Uster did not hear PO Sanfillipo threaten to arrest § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint for § 87(2)(b) and § 87(2)(b) (BR 09, 10).
- PO Sanfillipo has been a member of the service for 16 years and has been the subject of seven previous CCRB allegations involving three cases. In CCRB case number 200615260, a physical force allegation was exonerated by the Board.

- PO Uster has been a member of the service for 13 years. This is the first CCRB complaint filed against her.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediate with PO Sanfillipo and PO Uster as an alternative method to resolve the complaint. § 87(2)(b)
- On January 12, 2018, the Office of the New York City Comptroller notice of claim had not been filed regarding this incident (BR 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 15

Investigator: _____

Signature

Inv. McFarlane-Ross

Print Title & Name

Date

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____